

Code Civ. Proc., §§ 2030.290(c), 2031.300(c). Defendant failed to serve timely responses to plaintiff's RFAs. His failure to do so necessitated plaintiff's motion; thus, sanctions are required.

Plaintiff requests \$2,750.00 in attorney's fees and anticipated costs of \$100 and submits a declaration in support thereof. The Court finds the requested fees are reasonable and grants the same as prayed. Costs are also awarded for the \$60 filing fee. Total fees and costs of \$2,810.00 shall be paid within 30 days of service of the final order.

3. CU0001902 Travis Gould vs. PHH Mortgage Corporation, et al.

On the Court's motion, this hearing is continued to March 9, 2026, at 10:00 a.m.

Plaintiff Travis Gould's January 20, 2026, motion to compel answers to interrogatories and to deem facts as admitted against Defendants is denied.

Plaintiff asserts his "first round of discovery was propounded to all the Defendants on July 1, 2025." Mot., 2:7-8. Defendants contend they responded to the same with objections on August 4, 2025. Palmieri Decl. ¶ 4. Plaintiff, however indicates that the original discovery requests were *withdrawn* on August 20, 2025, and then served again reportedly on September 24, 2025. 2/27/26 Vodonik Decl. ¶¶6-8. No proof of service has been provided as to the same. In any event, the parties agree that an extension to respond to discovery was granted by Plaintiff to Defendants until November 19, 2025 due to ongoing settlement efforts. Vodonik Dec., Ex. B; Palmieri Decl. ¶ 6.

Under Code of Civil Procedure sections 2030.300(c) (interrogatories), and 2033.290(c) (requests for admissions), unless notice of a motion to compel further responses is given within 45 days of the service of the responses, or any specific later date to which the parties have agreed in writing, the propounding/requesting party waives any right to compel a further response to the interrogatories, or requests for admission.

Plaintiff's deadline to compel responses to the discovery requests was Monday, January 5, 2026 (given that the 45th day fell on January 3, 2026). Plaintiff filed its motion on January 20, 2026. Accordingly, the motion is untimely and Plaintiff waived his right to compel further responses.

Plaintiff unsuccessfully made the instant motion. There has been no showing that there was substantial justification for the motion or that imposition of sanctions would be unjust. *See* Code Civ. Proc. §§ 2030.300(c), 2033.290(c). Defendants seek sanctions for 5 hours of attorney time without specification of a reasonable rate. The Court finds that Defendants are entitled to monetary sanctions from Plaintiff in the amount of \$1,200.00 (4 hours at \$300/hour).

4. CU0002271 Christine Jones vs. Nationstar Mortgage LLC, et al.

On the Court's motion, this hearing is continued to March 9, 2026, at 10:00 a.m.

The December 5, 2025, motion of Defendant Nationstar Mortgage LLC and America West Lender Services LLC to strike Plaintiff's first amended complaint ("FAC") is granted. Plaintiff's complaint filed on August 7, 2025 shall proceed as the operative complaint in this matter.

Defendants assert Plaintiff's FAC was not filed in conformity with the laws of the state and should be stricken. The Court agrees.

"Ordinarily, an amended complaint may be filed without leave of court only before responsive pleadings are filed." *Woo v. Superior Court* (1999) 75 Cal.App.4th 169, 175, citing Code of Civ. Proc. § 472. "After the responsive pleadings are filed an amendment to a complaint ... requires leave of court." *Ibid.*, citing Code of Civ. Proc. § 473 (a).

Here, Plaintiff filed the FAC without leave of the Court after Defendants had answered the initial complaint. As such, it was not filed in conformity with the Rules of Procedure and is subject to striking under Code of Civil Procedure section 436(b). See *Ferraro v. Camarlinghi* (2008) 161 Cal.App.4th 509, 528 ("This provision is commonly invoked to challenge pleadings filed in violation of a ... requirement of prior leave of court.")

Plaintiff has not opposed the motion and has made no showing that she had authority to file the FAC. The Court is aware that during the meet and confer process Plaintiff suggested the FAC filed on November 21, 2025 "was submitted pursuant to...judicial authorization" permitted to correct the defect of being unverified. Chaffin Decl., Exh. A, pg. 2. In the court's November 14, 2025 order denying Plaintiff's request for preliminary injunction, the court held, "[t]he verified complaint, in fact, does not include a verification; it is not considered as evidence.... To the extent that Plaintiff seeks other relief, she must file and notice an appropriate motion for the same." Nov. 14, 2025 Order, 2:5-10. That order did not, in any way, authorize Plaintiff to file a FAC after Defendant filed an answer.

Defendants' motion to strike is granted.

5. CU0002305 Jason Christ v. Justis Barquilla

On the Court's motion, this hearing is continued to March 9, 2026, at 10:00 a.m.

Plaintiff's December 8, 2025, motion to strike the answer and cross-complaint is denied.

Defendant urges the Court to deny the motion because no supporting memorandum of points and authorities was filed by Plaintiff. The Court agrees.

Cal. Rules of Court, rule 3.113 "requires motions to be supported by memoranda containing 'a statement of facts, a concise statement of the law, evidence and arguments relied on, and a discussion of the statutes, cases, and textbooks cited in support of the position advanced,' and provides that a motion's failure to provide such a memorandum can be construed 'as an admission that the motion ... is not meritorious....' " *Quantum Cooking Concepts, Inc. v. LV Associates, Inc.* (2011) 197 Cal.App.4th 927, 931, *quoting* Rule 3.1113(b) & (a). "Rule 3.1113 rests on a policy-based allocation of resources, preventing the trial court from being cast as a tacit advocate for the moving party's theories by freeing it from any obligation to comb the